

M/s Abdulla & Company Rice Mill v. Chief Engineer, Distribution Division & Others

Allahabad High Court · Division Bench · 4 December 2017 · Writ - C No. 55072 of 2012 · **Writ dismissed as infructuous; Clause 6.9(II)(C) challenge not decided**

HEADNOTE

A rice mill challenged an Executive Engineer's order of 31.7.2012 as founded on Clause 6.9(II)(C) of the U.P. Electricity Supply Code, 2005, which the petitioner said had been deleted by the Fourth Amendment, 2007 dated 14.6.2008, and also sought compensation for harassment. On counsel's statement that the entire disputed amount had been adjusted in the bill, so that no further direction was required, the Division Bench dismissed the writ as infructuous. The Court did not decide whether Clause 6.9(II)(C) survived, whether the 31.7.2012 order was valid, or the claim for compensation.

FACTUAL SUMMARY

M/s Abdulla & Company Rice Mill, a consumer on connection No. 150/1410/05216, petitioned the Allahabad High Court to quash order dated 31.7.2012 (No. 2259) of the Executive Engineer, Electricity Distribution Division IInd, Paschimanchal Vidyut Vitran Nigam Ltd., Rampur, and to direct U.P. Power Corporation Ltd. to pay compensation for harassment. The mill's case was that the Executive Engineer had passed the order under Clause 6.9(II)(C) of the U.P. Electricity Supply Code, 2005, a provision it said had already been deleted by the Fourth Amendment, 2007 dated 14.6.2008 and published in the Gazette that day.

The writ was listed through 2012–2013 for the licensee's instructions, to trace a short counter-affidavit and a supplementary affidavit, and after one Bench recused. On 4.12.2017 counsel informed the Court that the entire disputed amount had been adjusted in the bill, so no further direction was required and the petition had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

Writ challenging an EE order as based on deleted Clause 6.9(II)(C) dismissed as infructuous after the disputed amount was adjusted in the bill

HOLDING

On 4.12.2017 the petitioner's counsel stated that the entire disputed amount had been adjusted in the bill, so no further direction was required and the writ had become infructuous. The Division Bench dismissed the petition. It did not decide whether the Executive Engineer's order dated 31.7.2012 (No. 2259) on connection No. 150/1410/05216 was illegal as based on Clause 6.9(II)(C) of the U.P. Electricity Supply Code, 2005, which the petitioner said had been deleted by the Fourth Amendment, 2007 dated 14.6.2008 and gazetted the same day, nor the claim for compensation. ¶ 4.12.2017

QUALIFIER

No merits construction; dismissed as infructuous on counsel's statement.

FLAG Thin procedural record. The disposing order of 4.12.2017 is unnumbered. Prior order-sheet (17.10.2012–8.2.2013: Satya Poot Mehrotra and Het Singh Yadav, JJ., then Vineet Saran, J. with successive companion judges) is listing only — instructions, tracing affidavits, recusal, adjournments — with no interim construction. The Court did not number or construe a Code clause; the petitioner invoked Clause 6.9(II)(C) as already deleted.

PRINCIPLE TAGS

clause-6.9-representation-time-bound-decision The mill attacked the 31.7.2012 Executive Engineer order as passed under Clause 6.9(II)(C) after that sub-clause had, on its case, been deleted. The Division Bench did not construe

Clause 6.9 or the Fourth Amendment; it dismissed the writ as infructuous once counsel said the disputed amount had been adjusted in the bill. ¶ 4.12.2017

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S ORDER DATED 31.7.2012 (NO. 2259) WAS ILLEGAL AS FOUNDED ON CLAUSE 6.9(II)(C) AFTER THAT SUB-CLAUSE HAD BEEN DELETED BY THE FOURTH AMENDMENT, 2007 DATED 14.6.2008

Raised in the writ prayer; left untouched when the petition was dismissed as infructuous. ¶ 4.12.2017

NOT DECIDED — CLAIM FOR COMPENSATION FROM U.P. POWER CORPORATION LTD. FOR HARASSMENT IN PASSING THE 31.7.2012 ORDER

Prayed in the writ; not examined. ¶ 4.12.2017

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE DISPUTED AMOUNT ON CONNECTION NO. 150/1410/05216

Counsel stated the amount had been adjusted in the bill; the Court made no finding. ¶ 4.12.2017

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.